

Court No. - 21

Case :- WRIT - C No. - 2274 of 2023

Petitioner :- Mohd. Owais Siddiqui Alias Owais

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Tahir Ali

Counsel for Respondent :- CSC

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Learned counsel for the petitioner is permitted to serve respondent nos.2 and 3 through their counsel.

List as fresh on 31.01.2023.

Learned counsel for the petitioner will also inform learned counsel for the respondent nos.2 and 3, about the order passed today in writing.

Order Date :- 23.1.2023

S.Chaurasia

(Vikram D. Chauhan,J.) (Manoj Kumar Gupta,J.)

Court No. - 21

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Counsel for Respondent :- CSC

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Copy of the writ petition has been served on behalf of the respondent Electricity Department on Sri N.K. Tiwari in Court today.

List as fresh on 7.2.2023, showing the name of Sri N.K. Tiwari as counsel for the respondent Electricity Department.

In the meantime, counsel for the respondent shall complete his instructions.

(Vikram D. Chauhan J.) (Manoj Kumar Gupta, J.)

Order Date :- 31.1.2023

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 2274 of 2023

Petitioner :- Mohd. Owais Siddiqui Alias Owais

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Tahir Ali

Counsel for Respondent :- CSC, Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

The petitioner has challenged the recovery certificate dated 16.2.2022, issued by Executive Engineer/Prescribed Authority, U.P. Power Corporation Limited for recovery of sum of Rs. 90,030/- from one Owais.

The case of the petitioner is that the recovery is wholly illegal as it does not relate to the petitioner. The further case of the petitioner is that the petitioner is having domestic electricity connection in the name of his father and against which there is no electricity dues.

Learned counsel for the respondent Electricity Department states that the electricity connection in respect of which the impugned demand/recovery certificate has been issued, was in name of grandfather of the petitioner and after his death, its permanent disconnection was not got done.

Having regard to the nature of controversy, we permit the petitioner to file objection before the competent authority in terms of Paragraph 6.5 of the U.P. Electricity Supply Code, 2005. In case any such objection is filed, same will be decided by the competent authority in accordance with law.

In case objection is filed within two weeks from today, the competent authority will proceed to decide the same within next four weeks and in the meantime, the impugned recovery shall remain stayed.

Thereafter, it will abide by the decision that would be taken by the competent authority on the objection of the petitioner.

The petition is disposed of accordingly.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 7.2.2023

Jaideep/-